

For Office Use Only

CRIMINAL COVER SHEET

The criminal cover sheet neither replaces nor supplements the filing and service of pleadings or other papers as required by law. This form is required for use by the Clerk of the District Court for the purposes of initiating the criminal docket sheet. This information will not be available to the public and this document will be stored in a separate location from the case file and then destroyed within a reasonable time. A new case **will not be accepted** without a cover sheet attached. (THIS FORM MUST BE TYPED OR PRINTED LEGIBLY).

DEFENDANT’S INFORMATION

(ATTACH ADDITIONAL SHEET, IF NECESSARY)

NAME: Jordan Avery Reyes

ADDRESS: 412 Magnolia Avenue
Topeka, KS 66603

PHONE: 785-555-0142 SEX:

CELL PHONE:

E-MAIL ADDRESS: jordan.reyes@example.org

DL OR STATE ID NO: State and Number

SSN: DOB: 1988-06-14

RACE: ☐ WHITE ☐ BLACK ☐ ASIAN ☐ PACIFIC ISLAND
☐ AMERICAN INDIAN/ALASKAN ☐ UNKNOWN

ETHNICITY: ☐ HISPANIC ☐ NON-HISPANIC ☐ UNKNOWN

SEX:

ALIAS NAMES USED:

KDR TRANSACTION NUMBER:

ATTORNEYS
(FIRM NAME, ADDRESS, TELEPHONE NUMBER AND SUPREME COURT ID NUMBER)

COMPLAINT INFORMATION

VIOLATION DATE: 2017-11-02

OFFICER:

OFFICER NO.:

ATTORNEYS (IF KNOWN)
(FIRM NAME, ADDRESS, TELEPHONE NUMBER, CELL PHONE NUMBER, E-MAIL ADDRESS, AND SUPREME COURT ID NUMBER)

The requirement that Social Security numbers be included on criminal cases is not mandatory. The number is used for purposes of identification and may be disclosed as permitted by law. This form is not considered to be a public record.

IN THE ^{3rd} JUDICIAL DISTRICT
DISTRICT COURT OF Shawnee COUNTY, KANSAS

THE STATE OF KANSAS

Case No. 2018-CR-004217

vs.

Jordan Avery Reyes [Name]
Defendant

PETITION FOR EXPUNGEMENT OF CONVICTION OR DIVERSION

Pursuant to K.S.A. 21-6614.

I respectfully request of the Court an order of expungement of my ☐ conviction and related arrest records **OR** ☒ diversion record and related arrest records. In support thereof, I state the following:

1. My full name is Jordan Avery Reyes.
2. My full name at the time of my arrest or conviction, if different than #1, was _____.
3. I am a _____ [Race] _____ [Sex] born in ¹⁹⁸⁸ _____ [Year of Birth].
4. I was arrested in _____ County, Kansas on _____ [Date] by _____ [Law Enforcement Agency] and charged with the crime of _____.
5. I was convicted of _____ on _____ [Date].

OR

I was granted a diversion for the crime of _____ on _____ [Date].

6. The convicting court or diverting authority was _____.

7. The date of final discharge was _____.

8. *(Select and complete either Option A or B, NOT both)*

☒ **Option A.**

i. More than ☐ one ☐ three ☐ five ☐ ten years have elapsed since I fulfilled the terms of a diversion agreement, satisfied the sentence imposed, or was discharged from probation, a community services program, parole, post-release supervision, conditional release or a suspended sentence; and

ii. I have not been convicted of a felony in the past two years and no proceeding involving any such crime is presently pending or being instituted against me.

iii. *(check box if applicable)*

☐ I was convicted/ received a diversion for prostitution and I was acting under coercion.

Coercion means: threats of harm or physical restraint against any person; a scheme, plan or pattern intended to cause a person to believe that failure to perform an act would result in bodily harm or physical restraint against any person; or the abuse or threatened abuse of the legal process.

OR

☐ **Option B.**

I successfully completed a specialty court program. My conviction is for an offense that would normally be eligible for expungement after three years. No proceeding involving a felony is presently pending or being instituted against me.

9. The conviction or diversion for which expungement is sought is not one of the offenses set out in K.S.A. 21-6614(e), for which no expungement is permitted.

I affirm under penalty of perjury that the statements in this Petition are accurate to the best of my knowledge and I respectfully request that the Court set this matter for hearing and grant the expungement.

Defendant, Pro Se
Name (Print): Jordan Avery Reyes
Address 1: 412 Magnolia Avenue
Address 2: _____
City, State, Zip: Topeka, KS 66603
Telephone Number: 785-555-0142
Fax Number: _____
E-mail Address: jordan.reyes@example.org

Authority

K.S.A. 21-6614.

Notes on Use

A person may not receive an expungement for convictions of:

- Rape
- Indecent liberties with a child
- Aggravated indecent liberties with a child
- Criminal sodomy
- Aggravated criminal sodomy
- Indecent solicitation of a child
- Aggravated indecent solicitation of a child
- Sexual exploitation of a child
- Internet trading in child pornography
- Aggravated internet trading in child pornography
- Aggravated incest
- Endangering a child
- Aggravated endangering a child
- Abuse of a child
- Capital murder
- Murder in the first degree
- Murder in the second degree
- Voluntary manslaughter
- Involuntary manslaughter
- Involuntary manslaughter while driving under the influence
- Sexual battery when the victim is less than 18 years of age
- Aggravated sexual battery
- Commercial driving under the influence, including any diversion for such violation
- Any comparable offense if the conviction was in effect at any time prior to July 1, 2011.

K.S.A. 21-6614(e).

A person who is required to register as a sex offender or violent offender under the Kansas Offender Registration Act may not receive an expungement for any conviction while the person is required to register. However, a person who is required to register as a drug offender under the Kansas Offender Registration Act may be eligible to petition for relief from registration and for expungement of the drug offense at the same time if all applicable requirements are met. See the chart on the next page for the applicable time requirements for expungement of drug offenses. Forms to request relief from drug offender registration are also available on the Judicial Council website.

Please consult the chart on the next page if your crime is not listed above.

Conviction	Date when crime was committed	Time since sentence completed Or	Time since diversion completed Or	Time since discharged from probation, community correctional services, parole, postrelease supervision, conditional release or suspended sentence	Expungement Available	K.S.A. with more details
applying for title of a motor vehicle under a false name or address	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
crime punishable as a felony wherein a motor vehicle was used	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
cigarette or tobacco infraction ⁺	Not relevant	3 years	3 years	3 years	Yes	21-6614(a)
driving under the influence – regardless of number of offenses (<i>see</i> K.S.A. 8-1567)	Prior to July 1, 2006	5 years	5 years	5 years	Yes	21-4619 (repealed and transferred to 21-6614 – L. 2010, Ch. 136)
driving under the influence – 1 st offense (<i>see</i> K.S.A. 8-1567)	On or after July 1, 2006	5 years	5 years	5 years	Yes	21-6614(d)
driving under the influence – 2 nd or subsequent offense (<i>see</i> K.S.A. 8-1567)	*On or after July 1, 2006 except those committed on or after July 1, 2014, and prior to July 1, 2015	10 years	N/A	10 years	Yes	21-6614(d)
driving under the influence – 2 nd or subsequent offense (<i>see</i> K.S.A. 8-1567)	*On or after July 1, 2014, and prior to July 1, 2015	7 years	N/A	7 years	Yes	21-6614(d) L. 2014, Ch. 102 § 6. L. 2015 Ch. 71, § 4.
driving while canceled, suspended or revoked	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
failing to have motor vehicle insurance	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
failing to stop at the scene of an accident and perform required duties	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
misdemeanor ⁺	Not relevant	3 years	3 years	3 years	Yes	21-6614(a)
nondrug crime ranked in severity levels 1 through 5	On or after July 1, 1993	5 years	5 years	5 years	Yes	21-6614(c)
nondrug crime ranked in severity levels 6 through 10 ⁺	On or after July 1, 1993	3 years	3 years	3 years	Yes	21-6614(a)
perjury	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)

Conviction	Date when crime was committed	Time since sentence completed Or	Time since diversion completed Or	Time since discharged from probation, community correctional services, parole, postrelease supervision, conditional release or suspended sentence	Expungement Available	K.S.A. with more details
prostitution	Not relevant	1 year	1 year	1 year	Yes	21-6614(b)
traffic infraction ⁺	Not relevant	3 years	3 years	3 years	Yes	21-6614(a)
vehicular homicide	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
class A, B, or C felony	Not relevant	5 years	5 years	5 years	Yes	21-6614(c)
class D or E felony ⁺	Not relevant	3 years	3 years	3 years	Yes	21-6614(a)
felony ranked in severity levels 1 through 3 of drug grid	Between July 1, 1993 and July 1, 2012	5 years	5 years	5 years	Yes	21-6614(c)
felony ranked in severity levels 1 through 4 of drug grid	On or after July 1, 2012	5 years	5 years	5 years	Yes	21-6614(c)
felony ranked in severity level 4 of drug grid ⁺	Between July 1, 1993 and July 1, 2012	3 years	3 years	3 years	Yes	21-6614(a)
felony ranked in severity level 5 of drug grid ⁺	On or after July 1, 2012	3 years	3 years	3 years	Yes	21-6614(a)
off-grid felony	On or after July 1, 1993	5 years	5 years	5 years	Yes	21-6614(c)

* Based on *State v. Anderson*, 12 Kan. App. 2d 342, 744 P.2d 143 (1987), the law in effect at the time of the offense applies with regard to eligibility for expungement unless the current law is more beneficial to the defendant. The current statute, K.S.A. 21-6614(d)(2), says a second or subsequent DUI conviction under K.S.A. 8-1567 cannot be expunged until 10 or more years have elapsed, but from July 1, 2014, to June 30, 2015, the statute allowed any DUI conviction or diversion to be expunged after 7 years. L. 2014 Ch. 102, § 6, effective July 1, 2014; L. 2015 Ch. 71, § 4, effective July 1, 2015. For a first DUI conviction or diversion, the current law, allowing expungement after 5 years, applies because it is more beneficial to a defendant than the 7 years required from July 1, 2014, to June 30, 2015. For a second or subsequent DUI conviction, the current statute, K.S.A. 21-6614(d)(2), does not allow expungement until 10 or more years have elapsed. Therefore, for second or subsequent DUIs that were committed on July 1, 2014, through June 30, 2015, the statute in effect at the time of the crime that allowed expungement after 7 years applies because it is more beneficial to the defendant.

⁺*Completion of a Specialty Court Program*

A person who has completed the requirements of a specialty court program may petition for immediate expungement of any offense which is otherwise eligible for expungement after 3 years. This early expungement opportunity does not apply to offenses for which expungement is not available or to offenses which require a 1, 5, 7 or 10-year waiting period.

IN THE 3rd JUDICIAL DISTRICT
DISTRICT COURT OF Shawnee COUNTY, KANSAS

THE STATE OF KANSAS

vs.

Case No. 2018-CR-004217

Jordan Avery Reyes [Name]
Defendant

**NOTICE OF HEARING ON PETITION FOR EXPUNGEMENT
OF CONVICTION OR DIVERSION**

The court will hold hearing on this matter on _____ day of _____,
20____, at ____:____ ☐ a.m. ☐ p.m. at the _____
County Courthouse, in division _____ \ room _____.

Petitioner, Pro Se
Name (Print): Jordan Avery Reyes
Address 1: 412 Magnolia Avenue
Address 2: _____
City, State, Zip: Topeka, KS 66603
Telephone Number: 785-555-0142
[Fax Number]: _____
[E-mail Address]: jordan.reyes@example.org

CERTIFICATE OF SERVICE AND MAILING

I certify that on this _____ day of _____, 20____, I sent a true copy of
this notice by depositing it in the United States mail, postage prepaid, addressed to:

Prosecuting Attorney (Print)
Address 1: _____
Address 2: _____
City, State, Zip: _____

Arresting Law Enforcement Agency (Print)
Address 1: _____
Address 2: _____
City, State, Zip: _____

(Clerk of the Court) (Deputy Clerk)

For Office Use Only

**ORDER OF EXPUNGEMENT OF CONVICTION OR DIVERSION
COVER SHEET**

(for submission to the Kansas Bureau of Investigation)

This coversheet is to be sent to the Kansas Bureau of Investigations to assist them with determining the right conviction or diversion to be expunged.

This form must be typed or printed legibly.

DEFENDANT'S INFORMATION

NAME: Jordan Avery Reyes

ADDRESS: 412 Magnolia Avenue
Topeka, KS 66603

SOCIAL SECURITY NUMBER:

☐ **MALE** ☐ **FEMALE**

DOB: 1988-06-14

RACE: ☐ **WHITE** ☐ **BLACK** ☐ **ASIAN** ☐ **PACIFIC ISLAND**
☐ **AMERICAN INDIAN/ALASKAN** ☐ **UNKNOWN**

ETHNICITY: ☐ **HISPANIC** ☐ **NON-HISPANIC** ☐ **UNKNOWN**

ALIAS NAMES USED:

IN THE ^{3rd} JUDICIAL DISTRICT
DISTRICT COURT OF Shawnee COUNTY, KANSAS

THE STATE OF KANSAS

vs.

Case No. 2018-CR-004217

Jordan Avery Reyes [Name]
Defendant

ORDER FOR EXPUNGEMENT

Pursuant to K.S.A. 21-6614.

On this ____ day of _____, 20____, the Court considers the Petition for Expungement filed herein. The State appears by _____, assistant county/district attorney or designee. The petitioner appears ☐ **pro se** ☐ **in person** with _____ [Attorney's name, if any]. Others appearing, if any, are:

_____.

The Court finds jurisdiction and venue are proper. Notice to parties and those required to receive notice has been given as required by law.

The Court, ☐ upon agreement of the parties, ☐ having reviewed the file, ☐ having received the evidence, and/or ☐ having heard statements of counsel, finds as follows:

1. The full name of the petitioner is Jordan Avery Reyes.
2. The full name of the petitioner at the time of his/her arrest or conviction, if different than #1, was _____.
3. The petitioner is a _____ [Race] _____ [Sex] born in 1988 [Year of Birth].
4. The petitioner was arrested in _____ County, Kansas on _____ [Date] by _____ [Law Enforcement Agency] and charged with the crime of _____.

5. The petitioner was convicted of _____ on _____ [Date].

OR

The petitioner was granted a diversion for the crime of _____ on _____ [Date].

6. The convicting court or diverting authority was _____.

7. The date of final discharge was _____.

8. ☐ More than ☐ one ☐ three ☐ five ☐ seven ☐ ten years have elapsed since petitioner fulfilled the terms of a diversion agreement, satisfied the sentence imposed, or was discharged from probation, a community services program, parole, post-release supervision, conditional release or a suspended sentence; and the petitioner has not been convicted of a felony in the past two years and no proceeding involving any such crime is presently pending or being instituted against the petitioner.

OR

☐ The petitioner successfully completed a specialty courts program and no proceeding involving a felony is presently pending or being instituted against the petitioner.

9. The conviction for which expungement is sought is not one of the offenses set out in K.S.A. 21- 6614(e), for which no expungement is permitted.

10. The petitioner's current circumstances and behavior warrant this expungement and this expungement is consistent with public welfare.;

11. If the petitioner is seeking expungement of a felony conviction, the possession of a firearm by the petitioner is not likely to pose a threat to the safety of the public.

12. The petitioner shall disclose that the arrest, conviction or diversion occurred if asked about previous arrests, convictions or diversions:

- A. in any application for licensure as a private detective, private detective agency, certification as a firearms trainer pursuant to K.S.A. 75-7b21, and amendments thereto, or employment as a detective with a private detective agency, as defined by K.S.A. 75-7b01, and amendments thereto; as security personnel with a private patrol operator, as defined by K.S.A. 75-7b01, and amendments thereto; or with an institution as defined in K.S.A. 76-12a01, and amendments thereto, of the department for aging and disability services;
- B. in any application for admission, or for an order of reinstatement, to the practice of law in this state;
- C. to aid in determining the petitioner's qualifications for employment with the Kansas lottery or for work in sensitive areas within the Kansas lottery as deemed appropriate by the executive director of the Kansas lottery;
- D. to aid in determining the petitioner's qualifications for executive director of the Kansas racing and gaming commission, for employment with the commission or for work in sensitive areas in parimutuel racing as deemed appropriate by the executive director of the commission, or to aid in determining qualifications for licensure or renewal of licensure by the commission;
- E. to aid in determining the petitioner's qualifications for the following under the Kansas expanded lottery act: (i) Lottery gaming facility manager or prospective manager, racetrack gaming facility manager or prospective manager, licensee or certificate holder; or (ii) an officer, director, employee, owner, agent or contractor thereof;
- F. upon application for a commercial driver's license under K.S.A. 8-2,125 through 8-2,142, and amendments thereto;

G. to aid in determining the petitioner's qualifications to be an employee of the state gaming agency;

H. to aid in determining the petitioner's qualifications to be an employee of a tribal gaming commission or to hold a license issued pursuant to a tribal-state gaming compact;

I. in any application for registration as a broker-dealer, agent, investment adviser or investment adviser representative all as defined in K.S.A. 17-12a102, and amendments thereto;

J. in any application for employment as a law enforcement officer as defined in K.S.A. 22-2202 or K.S.A. 74-5602, and amendments thereto; or

K. for applications received on and after July 1, 2016, to aid in determining the petitioner's qualifications for a license to act as a bail enforcement agent pursuant to K.S.A. 75-7e01 through 75-7e09, and amendments thereto, and K.S.A. 50-6,141, and amendments thereto.

13. The petitioner shall also disclose that the arrest, conviction or diversion occurred in the following circumstances as deemed appropriate by the Court:

--

IT IS THEREFORE ORDERED that the petitioner's arrest record, conviction or diversion record herein, named above, shall be expunged. The Clerk of the District Court, upon receipt and filing herein, shall send a certified copy of the Order of Expungement to the Kansas Bureau of

Investigation which shall notify the Federal Bureau of Investigation, the Secretary of Corrections, and any other criminal justice agency which may have a record of the arrest, conviction or diversion described herein.

IT IS SO ORDERED.

Judge of the District Court

Submitted by:

Signature of Defendant/Defendant's Attorney

Name(Print): Jordan Avery Reyes

[Supreme Court Number]: _____

Address 1: 412 Magnolia Avenue

Address 2: _____

City, State, Zip: Topeka, KS 66603

Telephone: 785-555-0142

Fax Number: _____

E-mail Address: jordan.reyes@example.org

Approved by:

Assistant County/District Attorney

Name(Print): _____

[Supreme Court Number]: _____

Address 1: _____

Address 2: _____

City, State, Zip: _____

Telephone: _____

Fax Number: _____

E-mail Address: _____

IN THE ^{3rd} JUDICIAL DISTRICT
DISTRICT COURT OF Shawnee COUNTY, KANSAS

THE STATE OF KANSAS

Case No. 2018-CR-004217

vs.

Jordan Avery Reyes [Name]
Defendant

ORDER DENYING EXPUNGEMENT
Pursuant to K.S.A. 21-6614.

On this ____ day of _____ 20____, the Court considers the Petition for Expungement filed herein. The State appears by _____, assistant county/district attorney or designee. The petitioner appears ☐ **pro se** ☐ **in person** with _____ [Attorney's name, if any]. Others appearing, if any, are: _____.

The Court finds jurisdiction and venue are proper. Notice to parties and those required to receive notice has been given as required by law.

The Court, ☐ upon agreement of the parties, ☐ having reviewed the file, ☐ having received the evidence, and/or ☐ having heard statements of counsel, finds as follows:

1. The full name of the petitioner is Jordan Avery Reyes;
2. The full name of the petitioner at the time of his/her arrest or conviction, if different than #1, was _____;
3. The petitioner is a _____ [Race] _____ [Sex] born in 1988 [Year of Birth];
4. The petitioner was arrested in _____ County, Kansas on _____ [Date] by _____ [Law Enforcement Agency] and charged with the crime of _____;

5. The petitioner was convicted of _____ on _____ [Date];

OR

The petitioner was granted a diversion for the crime of _____ on _____ [Date];

6. The convicting court or diverting authority was _____;

7. The date of final discharge was _____;

8. The request for expungement should be denied for the following reason(s):

IT IS THEREFORE ORDERED this _____ day of _____, 20____, that the petitioner's arrest record, conviction or diversion record herein, named above, shall not be expunged.

Judge of the District Court

Submitted by:

Signature of Defendant/Defendant's Attorney

[Supreme Court Number]: _____

Name(Print): Jordan Avery Reyes

Address 1: 412 Magnolia Avenue

Address 2: _____

City, State, Zip: Topeka, KS 66603

Telephone: 785-555-0142

[Fax Number]: _____

[E-mail Address]: jordan.reyes@example.org

Approved by:

Assistant County/District Attorney

Name(Print): _____

[Supreme Court Number]: _____

Address 1: _____

Address 2: _____

City, State, Zip: _____

Telephone: _____

[Fax Number]: _____

[E-mail Address]: _____

PREPARING FOR YOUR K.S.A. 21-6614 DIVERSION EXPUNGEMENT HEARING

Prepared for: Jordan Avery Reyes

The hearing on a Kansas expungement petition is real and it is required. The prosecutor appears. Any person with relevant information may testify. The court may inquire into your background and has access to Department of Corrections and Prisoner Review Board records.

The petition you are filing pleads only one of the four findings the court must make. The other three are about you, and the petition has nowhere to put them. That is what this page is for.

This page does not write your account of your own life and it does not predict the outcome. Both of those are outside what LegalEase does.

THE FOUR FINDINGS THE COURT MUST MAKE

1. The applicable period has elapsed. This is the only one of the four the petition itself pleads, at item 8. On this route it runs from ONE event: the date the terms of the diversion agreement were fulfilled. Not from the arrest, not from the date the diversion was granted, and not from anything else.
2. The circumstances and behaviour of the petitioner warrant the expungement. This is about the years since. Assemble your own records: work, study, treatment, service, family, anything that shows what has changed. Bring them.
3. The expungement is consistent with the public welfare. The court weighs this itself. Nothing you file decides it.
4. If the petition seeks expungement of a felony conviction, that the petitioner's possession of a firearm is not likely to pose a threat to the safety of the public. This finding is written about a felony conviction. A diversion is not a conviction, and how the finding is applied where the conduct diverted would have been a felony is a question for a Kansas lawyer rather than for this page.

WHAT THE COMMITTED RECORD SAYS, IN ITS OWN WORDS

What the committed record says about the fee, in its own words:

Docket fee \$176 under K.S.A. 21-6614(g)(2). The supreme court may additionally impose a charge not exceeding \$19 per case to fund non-judicial personnel; 2026 Senate Bill 430 carries that authority from July 1, 2026 through June 30, 2030. The docket fee is the only fee that may be collected for the case.

What the committed record says about notice, in its own words:

The court sets the hearing date and causes notice to be given to the prosecutor and the arresting law enforcement agency, K.S.A. 21-6614(g)(1). No response or objection period is specified; the prosecutor appears at the hearing.

What the committed record says about service, in its own words:

The participant files the Notice of Hearing with the original plus two copies and the clerk sends them. The participant does not serve and does not sign the certificate.

What the committed record says about the DUI lanes on this route, in its own words:

The second or subsequent DUI lanes are not offered on this route. K.S.A.

21-6614(d)(2) does not reach a diversion, and the Judicial Council chart records the 7-year and 10-year rows as not applicable in the diversion column.

What the committed record says about the registration bar, in its own words:

A person required to register under the Kansas Offender Registration Act may not expunge any conviction or any part of their criminal record while registration is required, K.S.A. 21-6614(f). That freezes every case in the record, not only the registrable offence. The sole exception is the K.S.A. 22-4908 drug offender route; sex offender and violent offender registrants are barred with no exception.

What happens after an order is granted:

Under K.S.A. 21-6614(i)(2) there are twelve contexts in which the arrest, conviction or diversion must still be disclosed, including law enforcement employment, a commercial driver's licence, bar admission, private detective and private patrol work, KDADS institutions, the Kansas lottery, racing and gaming, expanded lottery act positions, state and tribal gaming, securities registration, bail enforcement licensure, and insurance producer or public adjuster licensure for a fraudulent insurance act. Subsection (l) lists eighteen categories of requestor to whom the custodian may still disclose. Paragraphs 12 and 13 of the granting order print the list.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The prosecutor opposes the petition.
- The court sets a contested evidentiary hearing or a person appears to testify against the petition.
- The offence classification or severity level is disputed.
- The State v. Anderson time-of-offence analysis is in play beyond the DUI rows in the Judicial Council chart.
- The participant may currently be required to register under the Kansas Offender Registration Act.
- The record may be comparable to a K.S.A. 21-6614(e) offence under paragraph (19).
- The participant needs to build a real showing on the (h)(2), (h)(3) or (h)(4) findings.
- The petition seeks expungement of a felony conviction, because of the

firearms-safety finding at (h)(4).

- The participant is seeking firearms restoration as the primary goal, which is a federal and state law question beyond the order.
- Immigration consequences are in play.
- The arrest county and the convicting county differ.
- The diversion agreement's terms may not have been fully fulfilled, or the fulfilment date cannot be established.
- The case ended in a conviction rather than a fulfilled diversion, in which case the conviction route applies instead.

WHAT THIS DOCUMENT IS NOT

This page is preparation, not advocacy and not advice. It does not assess your record, it does not write your account of your own life, and it does not predict what the court will decide.